IN THE DISTRICT COURT HELD AT ANLOGA IN THE VOLTA REGION ON THURSDAY THE 27TH DAY OF FEBRUARY, 2025. BEFORE HER WORSHIP REJOICE ASEYE GADAGOE, DISTRICT MAGISTRATE.

CASE NO.: VR/AL/DC/B10/03/2025.

THE REPUBLIC
VRS
ALEX GBORMITTAH

JUDGMENT:

STATEMENT OF OFFENCE:

The Accused was arraigned before this Honourable Court on **27/02/2025;** and was charged with the offences stated below:

1. Assault on public officer contrary to **SECTION 204(A) OF THE CRIMINAL OFFENCES ACT, 1960 (ACT 29).**

2. Causing harm contrary to **SECTION 69 OF THE CRIMINAL OFFENCES ACT, 1960 (ACT 29).**

3. Destruction of public property contrary to **SECTION 1(2) OF PUBLIC PROPERTY PROTECTION ACT 1977 SMCD 140.**

Pleas of Accused:

Accused's pleas were taken on that same day, **27/02/2025**. He pleaded GUILTY WITH EXPLANATION to each of the three Counts.

Case of the Prosecution:

The facts as presented by the Prosecution are that;

*"The Complainant**,** MR. ATTAKPAH FAMOUS, is a **30-year old** Community Police Assistant and a native of ABOR while the Accused Alex Gbormittah, is a **19-years old** catering student of AVENORPEME TECHNICAL INSTITUTE near ABOR.*

*On **1/2/2025** around **9:00pm**, the vice principal of the school, MR. ALBERT XORNAM KOVOR called the Abor Police and reported about a riot on campus. Police quickly went to the school where they met PAUL KAMU who had sustained a knife inflicted wound on his left arm. Upon interrogation,*

Paul Kamu identified the Accused Alex Gbormittah as the one responsible for his injury.

When approached by the police for questioning, the Accused person became aggressive, engaged in an altercation, and proceeded to attacked the Complainant, tearing his police uniform amidst multiple threat to wit; useless police officers. I will make sure you are dismissed from the service.

Following the assault on the Complainant, he lodged an official complaint against the Accused and he was issued a medical report forms to attend any Government hospital for examination, treatment and report. On 5/2/2025, Accused was arrested and cautioned accordingly. After thorough investigation, he was formally charged and arraigned before this Honourable Court".

The Prosecution concluded its case by showing a video of how the Accused Mother heckled the Police Officers in the course of effecting arrest on the Accused.

Accused's Explanation:

"Please, I acted out of fear. I was also not feeling well and the crowd had followed me to the school. The crowd really beat me up. Paul Kamu punched my face and it swelled up. I wanted to go to Hospital rather. I apologize to the Honourable Court and the Police Officers present. I am very sorry. I promise never to do it again".

CONCLUSION:

The instant case is one of two sequels to CASE NO.: VR/AL/DC/B1/12/2025. In that case, the Accused herein, had been charged together with his three other school-mates. They had gone to town to buy Kenkey without a permission/exeat.

The three others were OSEI MARFO CHRIS, AGBANYO FELIX and ADEGOKE ISMAILA. The title of the said case is: THE REPUBLIC VRS ALEX GBORMITTAH & 3 ORS.

The four Accused persons were reportedly attacked outside of their School on **1/2/2025** around **9:00pm** by a gang of young men numbering about fifteen **(15).** Among them were PAUL KAMU and his brother WISDOM KAMU.

Wisdom Kamu is a **2nd year** Student of the same AVENORPEME TECHNICAL INSTITUTE near ABOR. Wisdom Kamu is a day Student of the school and had engaged in an altercation with the Accused ALEX GBOMITTAH, a day or two prior to the said attack.

Not satisfied, the gang, including WISDOM KAMU and PAUL KAMU, chased the Accused to the school. The Police were invited by the Vice-Principal and somehow, they decided to arrest the Accused, letting go of Wisdom Kamu, Paul Kamu and the many others vandalizing the School and compromising the safety of other Students.

Accused told the Court he struggled with the Police because he was afraid. That did not make his conduct right. Again, Accused's Mother was shown in a video, also attacking the Police.

Accused's mistreatment was unfortunate, but he and his mother, should also not have attacked the Police Officers in the course of their lawful arrest, albeit questionable.

CONVICTION:

Accused was convicted on his OWN GUILTY PLEAS ON ALL THREE COUNTS.

SENTENCES:

The convict was sentenced as follows:

Count One:
THE CONVICT IS SENTENCED TO A FINE OF 100 PENALTY UNITS.

Count Two:
THE CONVICT IS SENTENCED TO A FINE OF 100 PENALTY UNITS.

Count Three:
THE CONVICT IS SENTENCED TO A FINE OF 100 PENALTY UNITS.

- The sentences were to run concurrently. In default of the Fines, the convict was to serve ONE YEAR TERM OF IMPRISONMENT.

COMPENSATION:

The Convict and his Mother, were both ordered to compensate the Police Officers for injuries and destroyed Police Uniform with a total of FIVE THOUSAND GHANA CEDIS **(GH.C5,000.00).**

- **THE COMPENSATION WAS TO BE PAID BEFORE THE FINES.**

SGD.
HW REJOICE ASEYE GADAGOE
DISTRICT MAGISTRATE
27/02/2025.

- **Representation:**

- DETECTIVE CHIEF INSPECTOR RANSFORD KWATEI PROSECUTED FOR THE REPUBLIC.

- ACCUSED NOT REPRESENTED.